

SENATE BILL 1308

By Johnson

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 12 and Title 54, relative to transportation.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 54-1-504(b)(3)(D), is amended by deleting the word "independently" in the first sentence.

SECTION 2. Tennessee Code Annotated, Section 54-1-504(b)(3)(D), is amended by deleting the word "averaged" in the third sentence and substituting instead the word "compiled".

SECTION 3. Tennessee Code Annotated, Section 54-1-504(b)(3)(D), is amended by deleting the subdivision and substituting instead the following:

(D) Upon completion of the evaluation process, members of the selection committee shall review and score the proposals. Members shall score the proposals pursuant to the scoring matrix that the department provides in the RFP and based on the RFP's evaluation criteria. The scores must be tallied and compiled according to the procedure established in the RFP. Upon completion of the scoring, the proposals must be ranked in order of the highest score to the lowest score. The proposer whose proposal receives the highest score is considered the best-evaluated proposer;

SECTION 4. Tennessee Code Annotated, Section 54-1-504(b)(3)(E), is amended by deleting the language "scores from each member of the selection committee" and substituting instead the language "compiled scores".

SECTION 5. Tennessee Code Annotated, Section 54-1-504(b)(3)(E), is amended by deleting the subdivision and substituting instead the language:

(E) The proposals must be submitted in rank order to the commissioner. The commissioner may either accept the selection committee's recommendation of the best-evaluated proposer, or the commissioner may reject all proposals and proceed with construction of the project through any lawful method for procuring a construction services contract. The department shall send all proposers a written notice of award to the best-evaluated proposer, or a written notice that all proposals have been rejected. If the department issues a written notice of award, then the notice must include a copy of the scores from the members of the selection committee for each RFP proposal;

SECTION 6. Tennessee Code Annotated, Section 54-1-504(b)(3)(F)(iii), is amended by deleting the subdivision and substituting instead the following:

(iii) To confirm that no member of the selection committee has been improperly influenced, prior to reviewing the RFP responses, each committee member must affirmatively complete an affidavit indicating that the member has not discussed the proposals, or the member's review of the same, with any department employee other than those listed in the RFP as an appropriate point of contact and those serving on the selection committee, or with any of the proposers, their agents, employees, or subcontractors; and

SECTION 7. Tennessee Code Annotated, Section 54-1-504(b)(3)(F)(i), is amended by deleting the subdivision.

SECTION 8. Tennessee Code Annotated, Section 54-1-506, is amended by deleting the language "award of the pre-construction services contract" and substituting instead the language "the pre-construction services contract".

SECTION 9. Tennessee Code Annotated, Section 54-1-135(a), is amended by deleting the subsection in its entirety and substituting instead the following:

(a) In the event of a transportation system failure, an imminent threat of a failure, or other emergency that the commissioner reasonably believes would present a hazard to the traveling public or a significant delay in transportation, then the commissioner has the authority to enter into contracts narrowly tailored to remedy the actual or imminent failure or other emergency by one (1) of the following methods:

(1) When conditions allow, bids will be taken at a special letting. The commissioner is authorized to waive any provisions of this title related to bidding to effectuate this special letting, including advertisement, time periods, and notice;

(2) If the commissioner determines that the failure, threatened failure, or other emergency requires immediate attention, then the commissioner may enter into alternative delivery contracts, as defined in § 54-1-601, and waive any provisions of this title related to these contracts in order to effectuate these contracts;

(3) If the commissioner determines that the failure, threatened failure, or other emergency requires immediate attention, then the commissioner may enter into any highway construction and engineering contracts authorized under title 12 and this title, and waive any provisions of these titles related to these contracts in order to effectuate these contracts; or

(4) If the commissioner determines that the failure, threatened failure, or other emergency requires immediate attention, then the commissioner may enter into a contract through noncompetitive selection of a prequalified contractor available to undertake the repairs immediately on a force account basis or other basis determined by the commissioner.

SECTION 10. Tennessee Code Annotated, Section 54-1-135, is amended by deleting subsection (b) in its entirety and substituting instead the following:

(b) Notwithstanding § 4-3-2303(13), the department is not required to specifically identify any contract under this section in a prior transportation improvement program submitted annually to the general assembly in support of the commissioner's annual funding recommendations and for annual expenditures. However, if the commissioner enters into a contract under this section, the commissioner shall provide immediate written notice to the chair of the transportation and safety committee of the senate, the chair of the finance, ways and means committee of the senate, the chair of the committee of the house of representatives having jurisdiction over transportation-related matters, the chair of the committee of the house of representatives having jurisdiction over budget-related matters, the commissioner of finance and administration, and the comptroller of the treasury. Within thirty (30) days of the commissioner entering into a contract under this section, the department shall file copies of all bids and supporting documentation with the fiscal review committee.

(c) Notwithstanding §§ 54-1-119 and 54-1-503, if the proposed contract under this section has a total estimated contract amount exceeding one hundred million dollars (\$100,000,000), then the department is not required to specifically identify the project in the transportation improvement program submitted annually to the general assembly in support of the commissioner's annual funding recommendations.

(d) Notwithstanding § 54-1-602, the limit of twenty-eight (28) alternative delivery contracts per fiscal year under § 54-1-602 shall not apply to alternative delivery contracts procured under this section.

SECTION 11. Sections 3 and 5 of this act take effect July 1, 2029, the public welfare requiring it. All other sections of this act take effect July 1, 2025, the public welfare requiring it.